BENSON MUFANDAEDZA

Versus

KARAMBA KAPONDORO
(In his capacity as The Executor Estate Late ADMOS NYAMANDE NDLOVU DRB6/11)

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 13th -14th January & 16th March 2026.

Application for Absolution from the instance.

L. Chikwakwa for the plaintiff
J. Tshuma for the defendant

MPOKISENG DUBE J: This matter appeared before me for trial. The plaintiff through his erstwhile legal practitioners Messrs Sengweni Legal Practice issued summons claiming;

a) An order directing the defendant to cause to be registered a subdivision diagram that matches Plan 23/97.
b) Transfer of sub lots 3 and 4 as originally agreed between the Plaintiff and the deceased.
c) Costs of suit on an attorney client scale.

Brief facts

The undisputed facts of this matter are that sometime in 1997, the plaintiff and one Admos Nyamande Ndlovu purportedly entered into an agreement of sale in respect of Lot 3 and Lot 4 of Lot 8A of Woodville Estate. They purportedly agreed that the properties would be sold to the plaintiff for an agreed-upon purchase price of $ 70,000.00, payable in instalments. The agreement of sale was entered into before the subdivision permit was granted, and the allocation of lots was made in terms of a proposed subdivision diagram. The contract, schedule of payments and proposed subdivision diagram were attached to the plaintiff's further particulars as Annexures “A”, “B” and “C” at pages 17 to 19 of the record.

It became common cause that the subdivision permit was granted on 23 January 1998. However, it was granted with an amended and approved diagram 23/97 which is different from the proposed diagram initially attached to the application for the subdivision permit in that:

1. Lot 3 in the original diagram is Lot 6 in the amended permit and diagram;

2. Lot 4 in the original diagram is Lot 5 in the amended permit and diagram;

And

3. The borehole in the amended diagram is not part of the land sold.

1t is common cause that the plaintiff took occupation of Lot 4 and Lot 5 as per the amended diagram and has been in occupation for approximately 24 years. Meanwhile the seller Admos Nyamande Ndlovu died on the 29th November 2010 and his estate is now represented by the Executor as appears on the Summons Karamba Kapondoro.

Issues for Trial

The parties attended a pre-trial conference before a judge and produced a joint pre-trial conference minute, which appears at page 57 of the record, and set out the issues for trial as follows:

a. Whether the plaintiff's claim is prescribed?

b. Whether the plaintiff and the late Admos Nyamande Ndlovu entered into a valid agreement of sale of Lot 3 of and Lot 4 of Lot 8A of Woodville Estate?

c. Whether the plaintiff is entitled to take transfer of Lot 3 and Lot 4 of Lot 8A of Woodville Estate, in terms of the diagram plan number 23/97?

d. Who should pay costs?

At the opening of the trial, plaintiff's counsel, *Mr. B. Sengweni*, made an opening statement to the effect that his client would prove that there exists a binding agreement of sale between himself and the deceased Admos Nyamande Ndlovu. Further that during his lifetime

the deceased unilaterally altered that agreement by amending the diagram thereby prejudicing the plaintiff who lost a significant chunk of the land.

Mr Tshuma on the other hand truncated the argument to whether there was compliance with the Regional and Town Planning Act which prohibits sale of land before a sub-division permit is granted. He contended that the onus of proof on such issue is on the Plaintiff. If he successfully proves that they will raise a defence of prescription as per their amended plea. The parties agreed that the Plaintiff would lead his evidence first.

Evidence Led

The plaintiff Mr Mufandaedza took to the stand and testified under oath to the effect that he met the deceased through a common acquittance who informed him that the deceased was selling some plots. On offer were lots 3,4,5 and 6 of Lot 8A. He selected Lots 3 and 4. A purchase price was agreed upon at USD 70 000.00. He produced proof of payment by way of an agreement of sale signed by both parties and witnessed by one Gama Gumbo and B.D. Moyo. This document is undated but has attached to it a schedule of payments where the deceased signed for every payment made from the 5th September 1997 to the 3rd of November 1998. I must state that from the said attached schedule it would appear the agreement was made and signed on the 1st September 1997 where the opening balance of $70 000.00 appears next to the date "1 September 97". The first payment of $25 000.00 was made on the 5th September of 1997. Also attached to this schedule is a rough sketch of the land lay out of Lot 8A giving Lot 3 as 5012 and Lot 4 as 6486 square meters.

The plaintiff testified further that he is in court today because the now deceased Ndlovu never transferred tittle as agreed during his life time. Counsel Sengweni then asked the plaintiff to comment on the averment by the defendant that the agreement of sale he executed with the deceased is null and void by reason that it was entered into before a sub-division permit was granted in terms of the law. The plaintiff answered as follows"

> "*I agree that there was no sub-division permit then, but later on after consulting the city council on the contract and being told that there was need for a subdivision permit Mr Ndlovu went on to apply for such sub-division permit using the same info including the diagram I have alluded to earlier on. The permit was then issued on the 22nd*

January 1998. The conditions of our contract remained the same and I agreed to go ahead and pay."

When probed further on what was the status of the 1997 agreement he had this to he had this to say;

"*We agreed verbally that the said 1997 agreement was to become the sole agreement between us. We just attached the sub-division permit to it. ... and the agreement now stood with the sub-division permit."*

The plaintiff went on to explain that he purchased these lots as virgin land. To date he has developed a 7 roomed house, a Blair toilet, connected power, erected a fowl run that houses up to 2000 birds , sunk two boreholes with solar installations, built 30 000 litre reservoir, erected 2 green houses and erected a security fence. He runs a horticultural project wherein he is an out grower for Hamara Chickens, and exports green produce to Botswana.

He stated further that during the life time of the deceased there was no dispute as he (the deceased) intended to pass transfer to him however when the land surveyor came in , a Mr Thonye he placed beacons that altered the land sizes.

When asked about prescription he had this to say:

"*It is very true I delayed approaching the courts. However, I lay my claim of rights with Mr Ndlovu the now deceased but he fell ill for quite some time. After 3 months he was very ill. They told me to wait till he gets well. I waited for a very long time until he passed on."*

The plaintiff further testified that after the death of the deceased, one Sue Hove was appointed executor to the estate. He lodged his claim and she accepted it. She was later removed but still the estate lawyers were willing to pass transfer. Even the current executor Mr Kapondoro was willing to pass transfer but, according to plaintiff was advised by his current counsel *Mr Tshuma*, not to. He claims this was communicated verbally by Mr Kapondoro on one of their meetings on an undisclosed date. He closed his evidence in chief.

This witness was placed under intense cross-examination. The key points of the cross-examination, that he conceded to were; that the deceased died in year 2010. That he instituted court proceedings under HC2022/02 which he withdrew. That still he hasn't gotten transfer. That he is still attempting to enforce the 1997 agreement. That there was no written addendum to the 1997 agreement but rather just a verbal agreement. That the 1997 was still the principal agreement. That the diagram attached to the 1997 agreement is a proposed diagram. That as things stand the approved diagram for Lot 8A is the one approved on the 3rd February 1998. In the approved diagram Lot 1 &2 were consolidated to Lot 1 A of Woodville Estate. That instead of Lot 1-5 the approved diagram now had Lots 1-6. The new Lot 3 is now measuring 5075 square meters and has shifted positions from the one appearing on the proposed diagram. In fact Lot 2 is now Lot 3 and Lot 4 is now Lot 5. Resultantly what the Plaintiff is seeking to have transferred to him no longer matches what he occupies, or purportedly bought by position and size. That para 2.5 of the 1997 agreement obliged him to seek transfer within 3 months of date of last payment. That the deceased died 12 years after the agreement was concluded but without passing transfer. The last payment was made in November 1998. The current summons was issued on the 21st June 2024.

At the close of cross-examination, the plaintiff was not re-examined. He closed his case. The defendant brought forth an application for absolution from the instance.

In the present application, the two issues for determination are:

a) Whether the 1997 agreement of sale is valid?

b) Whether the addendum to the 1997 agreement is valid and should be enforced?

The Law Applicable

As correctly noted by *Mr Tshuma* an application for absolution from the instance is made in terms of Rule 56(6) of the High Court Rules 2021, which provides that:

> "(6) At the close of the case for the plaintiff, the defendant may apply for absolution from the instance, in which event the defendant or his or her counsel on his or her behalf may address the court and the plaintiff or his or her counsel on his or her behalf may reply. The defendant or his or her counsel may thereupon reply on any matter arising out of the address of the plaintiff or his or her counsel."

As clearly provided for in the rule the defendant has to make a value judgment on whether to bring forth an application for absolution of not. Similarly, the plaintiff may reply. It is not mandatory for the plaintiff to so reply. If anything, the plaintiff may consent to such application. *In casu* Counsel for both parties agreed on time lines within which to file their written submissions. Defendant by the 21st January 2026 and Plaintiff by the 28th. Defendant duly filed its submissions. By morning of the 28th, Counsel for the plaintiff sought an extension of time within which to file its submissions. An olive branch was extended towards him up to close of business the following day. Nothing happened. Counsel for the plaintiff instead wrote a letter to the registrar before he renounced agency. The letter read in part as follows:

> "*Withdrawal of our service is for ethical reasons, as our legal opinion is far divorced from the instruction the plaintiff has given us. This is the reason why we have failed to file opposition to the application made by the defendant as we have no legal argument to counter it."*

Having penned thus, plaintiff's erstwhile abandoned ship. The plaintiff was left to figure out matters for himself. Luckily, new counsel assumed agency and pieced together some very brief submissions. He identified himself as only LC of Messrs Sansole and Senda. I presume it is Mr Lawrence Chikwakwa. I am nonetheless indebted to him for the effort.

Both counsel seem to agree that executing a deed of sale prior to the obtention of a subdivision permit is a legal nullity. *Mr Tshuma* submitted thus:

> "*Section 39(1)(b)(i) of the Regional Town and Country Planning Act [Chapter 29:12] (hereinafter referred to as the "the Act') is paraphrased as follows, no person shall enter into any agreement for the change of ownership of any portion of a property except in accordance with a permit granted in terms of section 40 of the Act.*
>
> *"MAVANGIRA J (as she then was) in Tsamwa* v *Hondo & Ors (HC 6551 of 2005) [2008] ZWHHC 1053 (24 June 2008) had occasion to interpret section 39(1)(b)(i) of the Act as she dealt with a matter in which the Plaintiff was claiming transfer of a subdivision of a piece of land where the agreement of sale was entered into in the absence of a subdivision permit.*

MAVANGIRA J held that the language of section 39 is peremptory and admits no relevant exception to its applicability. She held further that an agreement concluded in the absence of a subdivision permit is strictly prohibited by the Act, and therefore, by virtue of section 39(1)(b)(i) of the Act, any purported agreement for the change of ownership of a portion of a property is null and void ab initio"

Mr Tshuma further cited the case of *Macfoy* v *United Africa Company Limited (1961) 3 All ER 1169 (PC) at 1172* as follows:

> "If an act is void, then it is in law a nullity. It is not only bad, but incurably bad. There is no need for an order of court to set it aside. If is automatically null and void without more ado, though it is sometimes convenient to have the court declare it to be so. And every proceeding which is founded on it is also on it is also bad and incurably bad. You cannot put something on nothing and expect it to stay there. It will collapse."

He argued further that in the present matter, the plaintiff confirmed that in 1997, he and the late Admos Nyamande Ndlovu agreed to the sale of subdivisions of Lot 8A of Woodville Estate. The plaintiff also conceded that there was no subdivision permit at the time of the sale. This scenario, which fits squarely within the ambit of section 39(1) (b) (i) of the Act, is expressly prohibited and therefore a nullity and void ab initio.

On the other hand counsel for the plaintiff equally concedes to the unmistakable interpretation of section 39 of the Regional and Town Planning Act but adds a plea of clemency as follows:

"Whilst it is acknowledged that the language used in Section 39 of (1) (b) (ii) of the Regional and Town Planning Act Chapter 29:12 is peremptory it is submitted that the fact that Plaintiff continued to be in occupation of the whole piece of land can only lead to one inescapable conclusion which is that there was then another oral agreement.

Certainly, the defendant has to explain this aspect. Further, in the present circumstances the court is urged not only to protect the Plaintiff but also apply notions of fairness and equity. In CBZ Bank Limited vs David Moyo & Another SC17/201 it was held that: Notions of fairness, justice and equity and reasonableness cannot be separated from public policy. Public policy takes into account the necessity to do simple justice between individuals."

I have read the matter of *CBZ Bank Limited v Moyo & Anor supra*. The facts of that matter are distinguishable from the matter at hand. In the CBZ matter the appellant wanted to sell in execution property that had already been sold to an innocent third party. The court there had a discretion to exercise provided there were special circumstances averred and proven. It held thus:

> "I must state that a deed of transfer or registration of cession is not conclusive proof of ownership or the rights of a cessionary. See the cases of Young v Van Rensburg 1991 (2) ZLR 149 (S) at 156 D-G and Kassim v Kassim 1989 (3) ZLR 234 (H) at 237 B-D. It simply raises a presumption in favour of the holder of the title deed or the rights of a cessionary until the claimant proves on a balance of probabilities that he innocently bought the property or cessionary rights from the owner of the property or cedent. See the case of Cunning v Cunning 1984 (4) SA 585 (T). In any event, the registration of transfer in the Deeds Registry or registration of cession at the offices of a local authority or Deeds Registry does not always reflect the true state of affairs. A title deed or registered cession is therefore prima facie proof of ownership or cessionary rights which can be successfully challenged. When the validity of title or registered cession is challenged, it is the duty of the court to determine its validity in order to make a ruling which is just and equitable. The fact that it can be challenged is vital for the disposal of this appeal."

In casu while I accept that all the plaintiff's efforts were well intentioned, he paid the purchase price in full and quite religiously. He has heavily invested in the land and is deriving a significant living out of it. Unfortunately, his is a violation of a mandatory Act of Parliament. The error appears to have been mutual between him and the deceased. His plight could have been averted had he revoked the 1997 contract as soon as he learnt of its shortcomings. He could have negotiated a fresh contract that protected his interests during the life time of the deceased. That did not happen. When he consulted his erstwhile counsel, I wonder what advice they gave him and what case they agreed to take to trial. Their prayer seeks to take transfer of lots matching approved diagram 23/97. Such lots are not what the plaintiff purchased in terms of location and size. He is in occupation of land not matching the description in the approved diagram. As things stand, I am of the view that the contract he seeks to rely on is *void ab initio*. There is no manner he can breathe life into it. Besides the Registrar of Deeds is not cited as a party. In any event it is impossible to compel registration of lots that no longer exist. The court has no special circumstances to consider nor a discretion to exercise. In the prayer on the summons there is no alternative relief sought such as a refund of the purchase price nor the current value of the land taking into account the improvements made.

I thus accept the argument by *Mr Tshuma's* argument that:

> *"……..it is a case in which the Court will not lend its aid to the enforcement of the contract*."

The plaintiff's claim cannot succeed in light of the prevailing legal position. In *Tswama* v *Hondo & Ors* (supra) at page 6, it is confirmed that what is done in contravention of an Act of Parliament cannot be made the subject of an action, and accordingly, the Court has no equitable jurisdiction to grant relief to a plaintiff seeking to enforce a contract prohibited by law.

I am of the view that the argument on an oral addendum does not help the plaintiff. An addendum can not create validity which the original contract never had.

The law on applications for absolution from the instance is settled as cited by both counsel.

> "(W)hen absolution from the instance is sought at the close of the plaintiff's case, the test to be applied is not whether the evidence led by the plaintiff establishes what would finally be required to be established, but whether there is evidence upon which a Court, applying its mind reasonably to such evidence, could or might (not should, nor ought to) find for the plaintiff. See *Gascoyne and Hunter* 1971 (TPD) 170 at 173; *Ruto Flour Mills (Pty) Ltd v Adelson (2)* 1958 (40 SA 307 (T).)"

In the foregoing I am of the respectful view that the plaintiff failed to place a *prima facie* case before this court upon which this court applying its mind reasonably might find for him.

It is for that reason that the following order is made.

The application for absolution from the instance be and is hereby granted with costs.

Sansole and Senda, plaintiff's legal practitioners
Webb, Low and Barry, defendant's legal practitioners.